

STATE OF NEW YORK

7464--B

2025-2026 Regular Sessions

IN ASSEMBLY

March 28, 2025

Introduced by M. of A. STIRPE, EACHUS, LUPARDO, MAGNARELLI, STERN, TAPIA, WRIGHT, TAYLOR, HYNDMAN, SOLAGES, BUTTENSCHON, DE LOS SANTOS, LUNSFORD, SIMONE, SHIMSKY, WOERNER, JACOBSON, PAULIN, HEVESI, SANTA-BARBARA, CRUZ, PHEFFER AMATO, KASSAY, BORES, BARRETT, KAY, McDONALD, CLARK, P. CARROLL, SCHIAVONI, DAVILA -- read once and referred to the Committee on Economic Development -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the alcoholic beverage control law, in relation to permitting certain retail licensees to purchase wine and liquor from certain other retail licensees

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 106 of the alcoholic beverage control law is
2 amended by adding a new subdivision 2-b to read as follows:

3 2-b. Notwithstanding any provision of this chapter to the contrary, a
4 retail licensee for on-premises consumption shall be authorized to
5 purchase up to six bottles of wine or liquor in the aggregate per week
6 from an off-premises retail licensee, and may resell any wine and liquor
7 so purchased for consumption on the premises licensed therefor.

8 § 2. Section 105 of the alcoholic beverage control law is amended by
9 adding a new subdivision 2 to read as follows:

10 2. (a) Notwithstanding any provision of this chapter to the contrary,
11 a retail licensee to sell liquor and/or wine for consumption off the
12 premises shall be authorized to sell up to six bottles of wine or liquor
13 in the aggregate per week to a retail licensee for on-premises consump-
14 tion.

15 (b) Both the retail licensee for on-premises consumption and the
16 retail licensee for off-premises consumption shall retain evidence of
17 each purchase of wine and liquor from a retailer licensed to sell liquor

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 and/or wine for consumption off the premises in the form of a purchase
2 receipt showing the name of the retailer, the date of purchase, a
3 description of the alcohol beverages purchased, and the price paid for
4 the alcohol beverages. The retail licensee for on-premises consumption
5 and the retail licensee for off-premises consumption shall retain the
6 receipt and make it available for inspection by the state liquor author-
7 ity and its duly authorized agents and employees.

8 § 3. This act shall take effect on the ninetieth day after it shall
9 have become a law. Effective immediately, the addition, amendment and/or
10 repeal of any rule or regulation necessary for the implementation of
11 this act on its effective date are authorized to be made and completed
12 on or before such effective date.